

Court No. - 36

Case :- WRIT - C No. - 32952 of 2011

Petitioner :- Dina Nath Saw

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Ashish Kumar Nagvanshi

Respondent Counsel :- C.S.C.,H.P. Dubey

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Bharati Sapru,J.

It is submitted by Shri Ashish Kumar Nagvanshi, learned counsel for the petitioner that a First Information Report was lodged against the petitioner on account of the alleged theft of electricity. The petitioner has been granted bail in the criminal case registered pursuant to the said First Information Report.

It is further submitted that no Provisional Assessment was ever received by the petitioner, and the petitioner was not given any opportunity of filing objections against such Provisional Assessment. Without complying with the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, Citation dated 9.5.2011 (Annexure 5 to the Writ Petition) has been issued requiring the petitioner to deposit the amount, mentioned in the said Citation, in respect of the Assessment made on account of the alleged theft of electricity.

Shri Pankaj Dubey, holding brief for Shri H.P. Dubey, learned counsel for the respondent no. 3 states that Shri H.P. Dubey has obtained instructions in the matter.

Shri Pankaj Dubey further states that as per the said instructions, the Provisional Assessment as well as the Final Assessment were sent to the petitioner, and the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 were complied with in the present case.

On a query put by the Court as to the mode of sending the Provisional Assessment and the Final Assessment to the petitioner, Shri Pankaj Dubey states that the said instructions are silent in this regard.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 2 has been

accepted by the learned Standing Counsel.

Notice on behalf of the respondent no. 3 has been accepted by Shri H.P. Dubey.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 18th August, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, the recovery proceedings against the petitioner pursuant to the Citation dated 9.5.2011 (Annexure 5 to the Writ Petition), will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 71,000/- with the respondent no.3.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this order will stand automatically vacated.

Order Date :- 31.5.2011

Ajeet

Court No. - 21

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Respondent :- State of U.P. and Others

Counsel for Petitioner :- Ashish Kumar Nagvanshi

Counsel for Respondent :- C.S.C.,H.P. Dubey

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None appears to press the petition even in revised call. Sri Udit Chandra, is present on behalf of Electricity Department.

The writ petition is dismissed for want of prosecution.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.5.2023

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